

24LBCV02761 24LBCV02761

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-08-13

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Case Number: 24LBCV02761 Hearing Date: August 13, 2026 Dept: S27

1.

Background

Facts

Plaintiff, Tyler Chambers ("Plaintiff"), filed this action against Defendants, FCA US, LLC and Cerritos Dodge, Inc. dba Cerritos Dodge Chrysler Jeep Ram (collectively, "Defendants"), for violations of the Song-Beverly Act, breach of implied warranty, negligent repair, and fraudulent inducement – concealment.

On 6/26/26, the Court (Hon. Mark C. Kim) held a Mandatory Settlement Conference (MSC) and a Trial Setting Conference. Plaintiff's counsel appeared, but Plaintiff did not appear. Therefore, the Court continued the MSC to August 13, 2026, and set: "Hearing on Motion to Dismiss and sanctions for Plaintiff's failure to appear and Plaintiff's counsel's failure to appear to timely request a continuance ... for 08/13/26" (6/26/26 Minute Order, p. 1.)

On 7/2/26, Defendants filed the instant motion for sanctions against Plaintiff's counsel of record (Strategic Legal Practices, APC) in the amount of \$8,335 and/or dismissal for Plaintiff's failure to appear and timely request a continuance of the MSC.

On 7/30/26, the Court conducted a Non-Appearance Case Review and vacated the MSC date because it is not holding Settlement Conferences at this time.

On 8/6/26, Plaintiff's counsel, Breana Rucker of Strategic Legal Practices, filed a declaration explaining Plaintiff's reasons for failing to appear at the MSC. No reply has been filed.

2.

Motion

for Sanctions and/or Dismissal for Failing to Appear at MSC or Request
Continuance of MSC

Under the Court's local rules: "The court may hold a mandatory settlement conference in each case before trial. The settlement conference shall be scheduled a sufficient time after the exchange of appraisals to allow the parties to conduct expert depositions and engage in settlement discussions. All counsel and all persons with settlement authority must attend the settlement conference in person, unless prior arrangements have been made with the court for that person to appear by telephone." (Super. Ct. L.A. County, Local Rules, rule 3.245.)

The rules further state: "The court may impose appropriate sanctions for the failure or refusal to comply with the rules in [Chapter Three (Civil Division Rules) of the Local Rules], including the time standards and/or deadlines, and any court order made pursuant to the rules. Counsel are directed to Code of Civil Procedure sections 128, 128.7, 177.5, 575.2, 583.150, 583.430, 2016.010-2036.050, Government Code section 68608, and California Rules of Court, rule 2.30. The sanctions may be imposed on a party and, if appropriate, on counsel for that party." (Super. Ct. L.A. County, Local Rules, rule 3.10 [underlining added].)

Defendants move for sanctions against Plaintiff's counsel (instead of Plaintiff).

However, Plaintiff's counsel appeared at the MSC and testifies that his client's failure to appear was due to his client's alleged preexisting travel arrangements. Plaintiff's counsel testifies: "Plaintiff and his counsel respectfully apologize to the Court for Plaintiff's absence from the June 26, 2026 MSC and for counsel's failure to timely notify the Court in advance regarding Plaintiff's unavailability." (Rucker Decl., ¶ 3.) "Prior to the June 26, 2026 MSC, Plaintiff advised counsel that he would be out of state from June 20 through June 27, 2026, and therefore would be unavailable to personally attend the MSC on June 26, 2026." (Id. ¶ 4.) "Plaintiff's absence was not intended to disregard the Court's order or the importance of the Mandatory Settlement Conference. Plaintiff had a preexisting travel conflict that prevented his personal attendance on that date." (Id. ¶ 5.) "Counsel

appeared on Plaintiff's behalf at the June 26, 2026 hearing. The Court thereafter continued the [MSC] and Trial Setting Conference and set a hearing concerning Plaintiff's nonappearance." (Id. ¶ 6.) "Counsel recognizes that Plaintiff's unavailability should have been brought to the Court's attention in advance and sincerely apologizes to the Court for failing to do so and for any inconvenienced caused to the Court." (Id. ¶ 7.) "Plaintiff remains actively engaged in this litigation and ready, willing, and available to proceed with this matter. Plaintiff intends to prosecute his claims and will make himself available for all future proceedings at which his personal attendance is required." (Id. ¶ 8.) Defendants have not presented evidence that would justify sanctions against Plaintiff's counsel or dismissal.

For those reasons, the motion is DENIED.

However, Plaintiff is admonished for the failure to appear and is warned that future failure to personally appear when required may result in monetary sanctions.

Plaintiff is ordered to give notice.